

#	Case Name	Tentative
50.	Nguyen v. Lucatero 2025-01450476	<u>Attorney Hoan N. Nguyen of Wow Law Group, APC's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen</u> Attorney Hoan N. Nguyen of Wow Law Group, APC's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen is DENIED as MOOT. A substitution of attorney has been filed indicating that Plaintiff has consented to the substitution of Bobbi Bolton, Esq. of Pacific Coast Injury Law Center for Hoan N. Nguyen of Wow Law Group, APC as Plaintiff's counsel of record. (ROA 64.) <u>Attorney Richard Kwak, Esq. of Pacific Coast Injury Law Center's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen</u> Attorney Richard Kwak, Esq. of Pacific Coast Injury Law Center's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen is GRANTED. Service on Plaintiff and counsel of the other parties was proper, and all required forms were filed pursuant to California Rules of Court, Rule 3.1362. Accordingly, Richard Kwak, Esq. and Pacific Coast Injury Law Center are relieved as counsel of record for Plaintiff Mai T. Nguyen. The order will take effect once moving attorney files proof of service of this Order on Plaintiff Mai T. Nguyen. Moving attorney to provide notice of this ruling.
51.	Brown v. City of Newport Beach 2025-01476699	Defendant City of Newport Beach's demurrer to Plaintiff Craig Brown's Second Amended Complaint ("SAC") is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) Defendant renews its demurrer to Plaintiff's Third Cause of Action for Failure to Provide Reasonable Accommodation, which the court previously found to be inadequately pleaded. (ROA 51.) Plaintiff's SAC added paragraph 81, which reads: "Plaintiff requested, as a reasonable accommodation (and per Defendant's mandated duty to investigate) and in order for Plaintiff to return to workplace free from retaliation and harassment, that Defendant conduct an investigation related to his disclosures of unlawful conduct. Plaintiff also requested, as a reasonable accommodation, that he be reassigned to a

#	Case Name	Tentative
		position or department that was not under the Human Resources department's influence. Defendant refused these requested reasonable accommodations. Instead, Defendant made clear to Plaintiff that it was simply "going through the motions" by holding these meetings but that no actual reasonable accommodation would be offered." Read as a whole, Plaintiff's SAC alleges he suffers from an adjustment disorder with mixed anxiety and depressed mood, which Plaintiff alleges could be accommodated by being reassigned to a different supervisor. These allegations are legally insufficient to state a claim for failure to provide a reasonable accommodation. See <i>Higgins-Williams v. Sutter Medical Foundation</i> (2015) 237 Cal.App.4th 78, 85 ("[a]n employee's inability to work under a particular supervisor because of anxiety and stress related to the supervisors's standard oversight of the employee's job performance does not constitute a disability under FEHA.") The demurrer is SUSTAINED, with one final opportunity for Plaintiff to attempt to plead a cause of action for Failure to Provide Reasonable Accommodation. Plaintiff has already had three opportunities to plead such a cause of action. Plaintiff may have one final opportunity to attempt to address the deficiencies in this cause of action. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. Defendant shall provide notice of this ruling.
52.	Bahra v. County of Orange 2026-01542077	Defendant County of Orange's unopposed demurrer to the complaint of plaintiffs Kevin Bahra and Daniel Johnson is SUSTAINED. Plaintiffs have failed to allege a dangerous or defective condition of defendant's property for purposes of Government Code section 835. "A claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition. A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." <i>Summerfield v. City of Inglewood</i> (2023) 96 Cal. App. 5th 983, 994 (citations omitted). The complaint fails to make these allegations.